

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC046243: OAK PARK FIRST PLAZA, LLC vs THOMAS LANG

06/29/2026 in Department 42

Motion to Strike Complaint for Untimely Amendment to Complaint following Demurrer

Motion: Defendant Thomas Lang's Motion to Strike Complaint for Untimely Amendment to Complaint following Demurrer (*opposed*)

Tentative Ruling:

The Court intends to DENY Defendant Lang's Motion to Strike Complaint for Untimely Amendment to Complaint following Demurrer.

Discussion:

The Court exercises its discretion to deny the Motion to Strike. Plaintiff's minor one-day delay in filing the First Amended Complaint, with no meaningful showing of prejudice to Defendant, does not justify the harsh sanction of dismissal.

A judge must disregard any defect in a pleading that, in the judge's opinion, does not affect the parties' substantial rights. (See CCP § 475; *Cooper v State Farm Mut. Auto. Ins. Co.* (2009) 177 Cal.App.4th 876, 904.) In *Harlan v. Department of Trans.* (2005) 132 Cal.App.4th 868, 873, the trial court sustained demurrer and had discretion to accept plaintiff's amended complaint, filed several days after deadline, even though plaintiff never requested extension of time, where late filing did not affect parties' substantial rights. (See also *Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 813.)

The one-day delay in filing does not affect the substantial rights of the parties. Plaintiff presents a sufficient amended complaint and argues the existence of a reasonable excuse for the delay. If the Court were to grant the motion to dismiss, and then vacate it on a motion for relief under Code of Civil Procedure § 473(b), it would be a waste of time and resources.

The First Amended Complaint, now the operative pleading, will be deemed filed effective June 29, 2026. This filing date will permit Defendant to raise pleading defects and other issues with the First Amended Complaint as appropriate.

The Motion is DENIED.